

2:00 PM LINE 3

24-CLJ-08355

WELLS FARGO BANK, N.A. VS. SIAOSI E FOLAU JR

WELLS FARGO BANK, N.A.
SIAOSI E FOLAU JR

HARLAN M. REESE
PRO SE

Plaintiff Wells Fargo Bank, N.A.'s Motion for Judgment on the Pleadings

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s unopposed Motion for Judgment on the Pleadings is DENIED.

To the extent that it is even necessary for the Court to judicially notice the file in the instant case, Plaintiff's unopposed Request for Judicial Notice ("RJN") is GRANTED pursuant to Evidence Code Section 452 (d).

As a preliminary matter, Plaintiff Wells Fargo Bank, N.A. ("Wells Fargo") has failed to comply with the meet-and-confer requirements of Code of Civil Procedure section 439, subdivision (a). Before filing a motion for judgment on the pleadings, the moving party must meet and confer "in person, by telephone, or by video conference" with the party whose pleading is being challenged. (Code Civ. Proc., § 439, subd. (a).) The motion must then be accompanied by a declaration stating either the means by which the parties met and conferred or that the other party failed to meet and confer in good faith. (*Id.*, at subd. (a)(3).)

The declaration here shows only that Wells Fargo sent a letter to Defendant Siaosi E Folau Jr.: that letter both fails to request a meeting in person, by telephone, or by video conference and states Wells Fargo's intention to file the motion notwithstanding any absence of a sufficient meeting and conferral. (Apr. 6, 2026 Declaration of Anthony Lio, ¶ 1, exh. A ["If we are unable to reach a settlement prior to the hearing date, we will proceed said (sic) hearing"].) Whether in the discovery or pleading context, meeting and conferring requires "a serious effort at negotiation." (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) The letter, expressing an intent to file the motion regardless and merely inviting Folau to ensure Wells Fargo fulfills its prefiling obligations, does not demonstrate that a serious effort has been made.

The Court nevertheless reached the merits of the motion and denies it on those merits.

"A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by CCP § 438, the rules governing demurrers apply—motion for judgment on the pleadings is equivalent to a demurrer." Motion for Judgment on the Pleadings, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-D (quotations and citations omitted). "A motion by plaintiff (or cross-complainant) can be made on the ground that the complaint states facts sufficient to constitute a cause of action against the defendant (or cross-defendant) and the answer does not state facts sufficient to constitute a defense to the complaint." *Id.* (citing Code of Civil Procedure Section 438(c)(1)(A)).

A general demurrer under Section 430.10(e) of the Code of Civil Procedure for failure to state a cause of action challenges defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. *Blank v. Kirwan* (1985) 39 C3d 311, 318.

“It is not necessary that the cause of action be the one intended by plaintiff. The test is whether the complaint states any valid claim entitling plaintiff to relief. Thus, plaintiff may be mistaken as to the nature of the case, or the legal theory on which plaintiff can prevail. But if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer.” Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted)

“For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded (i.e., all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law).” Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted).

Plaintiff brings the instant motion pursuant to Code of Civil Procedure section 438 for \$13,337.52. Defendant has not filed a brief in opposition.

Defendant largely denies the allegations in the Complaint. RJN, Ex. A, Answer.

It is of note, in passing, that Plaintiff’s Motion to Deem Facts Admitted was granted, and the genuineness of any documents and truth of any facts in Plaintiff’s RFA’s, Set One were deemed admitted. Those admissions include that as of December 26, 2024, there was a balance owing at least \$11,967.52 on Defendant’s account and that the affirmative defenses asserted by Defendant in this matter lack merit and evidentiary support. RJN, Ex. B, Plaintiff’s Motion to Deem Requests for Admission Defendant’s Deemed Admissions Admitted, Ex. A. Those admissions would certainly be significant evidence in support of a motion for summary judgment.

But Plaintiff argues that the deemed admissions are sufficient to grant this motion. That is mostly wrong. *Columbia Cas. Co. v. Nw. Nat. Ins. Co.* (1991) 231 Cal. App. 3d 457, 468 (“In contrast, in order for judicial notice to support a motion for judgment on the pleadings by negating an express allegation of the pleading, the notice must be of something that cannot reasonably be controverted.”). The matters deemed admitted here relate to matters that can, at least in theory, be controverted. It is also of note, **while the Court is not suggesting it would be sufficient**, that Defendant does not admit breaching any agreement, only that an account with a balance belongs to him. The main case cited by Plaintiff, *Barsegian v. Kessler & Kessler* (2013) 215 Cal. App. 4th 446, 452 is not a judgment on the pleadings case and does not support granting this motion. Plaintiff also cites *Pang v. Beverly Hosp., Inc.* (2000) 79 Cal. App. 4th 986. *Pang* is a procedurally unusual case where the Plaintiff moved for summary adjudication and the trial court denied that motion but, on its own motion, converted it to a motion for judgment on the pleadings for defendant and granted it based on admissions Plaintiff made in her motion. It does not help Defendant here in this posture.

This court notes that this is the third almost identical motion that Wells Fargo has filed in the Court in the last few months raising this same argument (in three separate cases). It has now been rejected three times.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Wells Fargo shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM LINE 4

25-CLJ-01923 ELG CIRCLE, LLC VS. MONICA CURTIS, ET AL

ELG CIRCLE, LLC
MONICA CURTIS

VIN A. FICHTER
YURI VORONIN

Defendant and Cross-Complainant Girl Scouts of Northern California's Motion for Reclassification From Limited Civil Jurisdiction to Unlimited Civil Jurisdiction

TENTATIVE RULING:

Defendant/Cross-Complainant Girl Scouts of Northern California's ("GSNC") unopposed "Motion for Reclassification from Limited Civil Jurisdiction to Unlimited Civil Jurisdiction," filed Jan. 28, 2026, is GRANTED. (Code Civ. Proc. § 403.040.)

Cross-Complainant GSNC should have requested re-classification in its October 2025 Amended Cross-Complaint, and should have paid the reclassification fee at that time. (Code Civ. Proc. § 403.030.) Nonetheless, under § 403.040, the Court finds good cause to reclassify the case. GSNC shall pay the reclassification fee. (Code Civ. Proc. § 403.040(c).) The Court Clerk SHALL RECLASSIFY the case as an unlimited civil jurisdiction case upon payment by GSNC of the required fee.

On a separate note, upon review of the parties' filings to date, including the Amended Cross-Complaint, the Court notes that this case may be particularly suitable to alternative dispute resolution. Cross-Defendants Monica Curtis et. al.'s March 4, 2026 Case Management Conference statement states that the parties agreed to participate in mediation, and were (at that time) scheduling a mediation for June 2026. The Court Orders that the parties meet and confer and file a joint update with the Court on the status/progress of mediation. The Court has concerns that the parties have not been meaningfully communicating with each other to discuss a resolution to this dispute.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.
